CHAPTER 296

CONSUMER AND COMMERCIAL TRANSACTIONS

SENATE BILL 24-041

BY SENATOR(S) Rodriguez and Lundeen, Baisley, Bridges, Buckner, Coleman, Cutter, Exum, Fields, Gardner, Ginal, Gonzales, Hansen, Jaquez Lewis, Kirkmeyer, Kolker, Liston, Marchman, Michaelson Jenet, Mullica, Pelton B., Priola, Roberts, Smallwood, Will, Fenberg;
also REPRESENTATIVE(S) Frizell and Mabrey, Amabile, Bacon, Bird, Bradley, Brown, Duran, English, Epps, Froelich, Garcia, Hamrick, Hernandez, Jodeh, Joseph, Lieder, Lindsay, Lukens, Lynch, Marshall, Marvin, McLachlan, Rutinel, Sirota, Story, Titone, Valdez, Velasco, Vigil, Weinberg, Weissman, Willford, Young, McCluskie.

AN ACT

CONCERNING ADDING DATA PROTECTIONS FOR A MINOR'S ONLINE ACTIVITY.

Be it enacted by the General Assembly of the State of Colorado:

SECTION 1. In Colorado Revised Statutes, 6-1-1302, **amend** (1)(a)(III), (1)(a)(V), (1)(b)(II), and (1)(c)(I); and **add** (1)(c)(II)(A.5) as follows:

6-1-1302. Legislative declaration. (1) The general assembly hereby:

(a) Finds that:

(III) Ongoing advances in technology have produced exponential growth in the volume and variety of personal data FROM INDIVIDUALS, INCLUDING MINORS, being generated, collected, stored, and analyzed and these advances present both promise and potential peril;

(V) The unauthorized disclosure of personal information, INCLUDING A MINOR'S PERSONAL INFORMATION, and loss of privacy can have devastating impacts ranging from financial fraud, identity theft, and unnecessary costs in personal time and finances to destruction of property, harassment, reputational damage, emotional distress, and physical harm;

(b) Determines that:

(II) States across the United States are looking to this part 13 and similar models

Capital letters or bold & italic numbers indicate new material added to existing law; dashes through words or numbers indicate deletions from existing law and such material is not part of the act.